

previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

17. 9:00 AM CASE NUMBER: MSC21-01751
CASE NAME: JOSE BELTRAN VS. MONUMENT CONSTRUCTION INC
HEARING IN RE: COMPLIANCE HEARING SET BY THE COURTROOM
FILED BY:

TENTATIVE RULING:

Based on the declaration of the Settlement Administrator, the settlement has been largely implemented, but the uncashed distributed paychecks will not be voided until May 7, 2026. **A further compliance hearing is set for May 21, 2026, 9:00 a.m. Plaintiff is to provide a declaration one week before the hearing updating the implementation.** The 5% of the attorney's fees currently held by the settlement administrator shall continue to be withheld pending further court order at the compliance hearing.

18. 9:00 AM CASE NUMBER: MSC22-00286
CASE NAME: EQUITY FIRST PROPERTY VS FIVE HILLS
HEARING ON DEMURRER TO: FIRST AMENDED CROSS COMPLAINT FILED BY: EQUITY FIRST PROPERTY MANAGEMENT A CALIFORNIA CORPORATION
FILED BY:

TENTATIVE RULING:

Before the Court is a demurrer by plaintiffs and cross-defendants Equity First Property Management dba Equity First Real Property and Management and Shops at Fairview to the first amended cross-complaint. For the reasons set forth, the general demurrers to the first and second causes of action are **sustained, with leave to amend**. Cross-complainant shall file any amended cross-complaint **by December 5, 2025**.

Background

This action arises out of business disputes over defendant and cross-complainant Five Hills, L.P.'s ownership of a commercial property located in a shopping center known as The Shops at Fairview which is managed by Equity First Property Management. Equity First and Shops at Fairview sued Five Hills for amounts they claim are owed for repair and maintenance costs included in the Five Hills share of the common area expenses. Five Hills filed a first amended cross-complaint ("FACC") against Equity First and Shops at Fairview, alleging four causes of action against Equity First and Shops at Fairview for fraud, abuse of process, accounting, and declaratory relief.

Standards Governing Ruling on Demurrer

In ruling on the demurrer, the Court must accept as true all well-pleaded factual allegations of the FACC, but not " 'contentions, deductions or conclusions of fact or law.' " (*Blank v. Kirwan* (1985) 39